

TechVenture Solutions — Client Service Agreement

This Service Agreement ('Agreement') is entered into as of January 1, 2024, between TechVenture Solutions Pvt. Ltd. ('Company') and the undersigned client ('Client'). This document governs the terms under which the Company shall provide software development and consulting services.

1. Payment Terms and Billing

The Client agrees to pay the Company a monthly retainer fee of INR 1,50,000 (One Lakh Fifty Thousand Rupees) due on the 1st of every calendar month. Invoices will be sent 7 days in advance. Payments not received within 15 days of the due date will attract a late fee of 2% per month on the outstanding amount.

All payments must be made via bank transfer to the Company's designated account. The Company reserves the right to suspend services if invoices remain unpaid beyond 30 days. Disputed invoices must be raised in writing within 5 business days of receipt.

2. Refund and Cancellation Policy

The Client may cancel this agreement by providing 30 days written notice to the Company. Monthly retainer fees already paid are non-refundable. However, if the Company fails to deliver agreed milestones within the stipulated timeline, the Client is entitled to a partial refund of up to 25% of that month's retainer.

Project-based engagements follow a milestone-based refund policy. If a project is cancelled before 50% completion, a 50% refund of the total project cost will be issued. No refunds are applicable after 75% project completion.

3. Intellectual Property Rights

All source code, designs, documentation, and deliverables created by the Company under this agreement shall become the exclusive property of the Client upon full payment of all outstanding invoices. Until final payment is received, all intellectual property remains with TechVenture Solutions Pvt. Ltd.

The Client grants the Company the right to use the Client's name and logo in marketing materials and case studies unless explicitly restricted in writing. Pre-existing tools, libraries, and frameworks used by the Company remain the Company's property.

4. Data Privacy and Confidentiality

Both parties agree to maintain strict confidentiality regarding each other's business information, technical data, client lists, pricing, and strategic plans. This confidentiality obligation survives the termination of this agreement for a period of 3 years.

The Company will handle all client data in compliance with the Information Technology Act, 2000 and applicable data protection regulations. Client data will not be shared with third parties without explicit written consent. Data will be securely deleted within 90 days of contract termination.

5. Liability and Indemnification

The Company's total liability under this agreement shall not exceed the total fees paid by the Client in the 3 months preceding the claim. The Company is not liable for indirect, incidental, or consequential damages arising from service interruptions, bugs, or data loss beyond its reasonable control.

The Client shall indemnify the Company against any claims arising from the Client's misuse of the delivered software, violation of third-party rights, or use of the software in jurisdictions where it is prohibited.

6. Service Level Agreement (SLA)

The Company guarantees 99% uptime for all hosted services. Scheduled maintenance windows will be communicated at least 48 hours in advance. In case of unplanned downtime exceeding 4 hours, the Client will receive a service credit equivalent to 1 day's retainer fee.

Bug fixes are categorized as Critical (resolved within 4 hours), High (within 24 hours), Medium (within 72 hours), and Low (within 2 weeks). Response times are measured during business hours: Monday to Friday, 9 AM to 6 PM IST.

7. Termination

Either party may terminate this agreement immediately in case of material breach, insolvency, or violation of applicable law. Upon termination, the Company will provide a handover package including all source code, documentation, and credentials within 10 business days.

If the Client terminates the contract without cause before the agreed project end date, the Company is entitled to payment for all work completed up to the termination date plus a 10% early termination fee on the remaining contract value.

8. Dispute Resolution

Any disputes arising under this agreement shall first be attempted to be resolved through mutual negotiation within 15 days of the dispute being raised. If unresolved, disputes shall be referred to arbitration under the Arbitration and Conciliation Act, 1996, with the seat of arbitration in Bangalore, Karnataka.

The governing law of this agreement is the law of India. The courts of Bangalore shall have exclusive jurisdiction over any matters not resolved through arbitration.

9. Amendments

This agreement may only be amended in writing, signed by authorized representatives of both parties. Verbal agreements or email exchanges do not constitute amendments unless formalized in a written addendum.

10. Contact Information

For billing queries: billing@techventuresolutions.in | +91-80-4567-8901

For technical support: support@techventuresolutions.in | +91-80-4567-8902

Registered Office: 4th Floor, Prestige Tech Park, Outer Ring Road, Bangalore - 560103